

UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEBRA NELSON,
Plaintiff,

vs.

Case No.: 3:25cv1447/MCR/ZCB

AMENTUM GOVERNMENT
SERVICES PARENT
HOLDINGS LLC, et al.,
Defendants.

_____ /

ORDER

On January 2, 2026, the Court ordered Defendants to respond to Plaintiff's motion for leave to file a fifth amended complaint (Doc. 37) within fourteen days. (Doc. 42). Defendants have now moved to toll their deadline to respond, stating that Plaintiff has informed them of her intent to move for leave to file a sixth amended complaint. (Doc. 44). Defendants state that the forthcoming motion for leave to file a sixth amended complaint will supersede the prior motion for leave and thus any response to the former motion will quickly be moot. The Court agrees and will toll Defendants' response deadline.

For the reasons above, it is **ORDERED** that:

1. Defendants' motion to toll (Doc. 44) is **GRANTED** to the

extent that Defendants' deadline to respond to Plaintiff's motion for leave to file a fifth amended complaint (Doc. 37) is **TOLLED** pending further order of the Court.

2. Plaintiff has **fourteen days** from the date of this order to file the apparently forthcoming motion for leave to file a sixth amended complaint and proposed sixth amended complaint.¹

3. Defendants must respond to Plaintiff's motion for leave to file

¹ Plaintiff is advised that after she files her new motion for leave and proposed amended complaint, further amendments are unlikely to be permitted. This run-of-the-mill employment discrimination case is almost five months old, and Plaintiff has been allowed to amend her pleadings (and proposed pleadings) numerous times. The Court cannot allow the case to linger endlessly at the expense of the Court's and Defendants' time and resources due to Plaintiff seeking unending opportunities to amend. *See Keira v. United States*, 400 F. App'x 477, 479 (11th Cir. 2010) ("[F]ederal courts have both the inherent power and the constitutional obligation to protect their jurisdiction from conduct which impairs their ability to carry out Article III functions, and have a responsibility to prevent single litigants from unnecessarily encroaching on the judicial machinery needed by others."); *Huggins v. Sch. Dist. of Manatee Cnty.*, 151 F.4th 1268, 1286 (11th Cir. 2025) (stating that while "courts must freely give leave [to amend] when justice so requires[,] a court "need not grant leave" where there has been "undue delay . . . or repeated failure to cure deficiencies by amendments previously allowed" or "where allowing amendment would cause undue prejudice to the opposing party") (cleaned up). If Plaintiff does not believe she can adequately plead her claims at this time or believes she will need additional opportunities to amend, then she may file a notice of voluntary dismissal under Fed. R. Civ. P. 41(a)(1)(A)(i) and re-file her claims at a later time in a new case.

a sixth amended complaint within **fourteen days** after it is docketed with the Court.

SO ORDERED. This the 16th day of January 2026.

s/ Zachary C. Bolitho

Zachary C. Bolitho

United States Magistrate Judge